

February 8, 2016



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16574
(FIRST REVISION)

EXPIRATION DATE: May 31, 2016

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Veolia ES Technical Solutions, L.L.C.
Lombard, IL
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-time transportation in commerce of certain unapproved fireworks from the Aberdeen Proving Ground military facility located in Aberdeen, MD to Veolia ES Technical Solutions, L.L.C.'s disposal facility located in Sauget, IL for final disposal. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.21(b) in that offering forbidden explosives is not authorized and §§ 173.51, 173.54(a), and 173.56(b) in that explosives must be tested, classed, and approved, except as specified herein.

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5. BASIS: This special permit is based on the application of Veolia ES Technical Solutions, L.L.C. dated September 16, 2015 submitted in accordance with § 107.105 and the public proceeding thereon and additional information dated February 1, 2016.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Fireworks*	1.1G	UN0333	II

*Only fireworks described in the application dated September 16, 2015 and on file with the Office of Hazardous Materials Safety Approvals and Permits Division may be transported under the terms of this special permit.

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings must comply with the Hazardous Materials Regulation and the following:

(1) A combination packaging consisting of 24 bags each containing six "The Hawker Harrier 2 (aka Apache II)" devices packed within a UN Standard 4G fiberboard box.

(2) A combination packaging consisting of 144 Roman Candle devices each individually wrapped in cellophane plastic sheeting packed within a UN Standard 4G fiberboard box. The Roman Candle devices must be tightly packed to prevent movement inside outer packaging.

b. OPERATIONAL CONTROLS -

(1) Prior to offering for transportation, each package of Roman Candle devices as described in paragraph 7.a.(2) must be thoroughly inspected. For packages containing Roman Candle devices where the cellophane

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plastic sheeting is identified as torn or missing, the entire UN Standard 4G fiberboard box must be placed into a sealed plastic bag which then must be overpacked in a UN Standard 1G fiber drum.

(2) Transportation is only authorized one-time from the Aberdeen Proving Ground military facility located in Aberdeen, MD to Veolia ES Technical Solutions, L.L.C.'s disposal facility located in Sauget, IL for final disposal. Once the hazardous materials covered under the terms of this special permit are delivered to the disposal facility, further transportation under the terms of this special permit is prohibited.

(3) Transportation must be completed in the shortest time-frame possible while at all times adhering to all federal, state and local regulations relative to the operation of a commercial motor vehicle on a public highway. To the extent possible, transportation must be conducted so as to avoid rush-hour traffic and avoid high density traffic.

(4) A maximum of 94 packages of devices packaged in accordance with paragraph 7.a.(1) may be transported under the terms of this special permit.

(5) A maximum of 85 packages of devices packaged in accordance with paragraph 7.a.(2) may be transported under the terms of this special permit.

(6) Transportation must be conducted on highways and avoid residential areas to the extent possible.

(7) While in transportation, the cargo carrying portion of the motor vehicle must be locked and secured at all times.

(8) No type of oxidizer, fuel, flammable solid or combustible device or item may be transported in the same motor vehicle as packages covered under the terms of this special permit.

(9) The appropriate Office of Hazardous Materials Safety region must be notified at least 48 hours in advance of any shipment.

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(10) A statement must be provided to the U.S. DOT when the shipment arrives at Veolia ES Technical Solutions, L.L.C.'s disposal facility located in Sauget, IL.

(11) The carrier of packages transported under the terms of this special permit must hold a valid Hazardous Materials Safety Permit issued by the Federal Motor Carrier Safety Administration.

8. SPECIAL PROVISIONS:

a. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).

b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: NICKS